A packet containing the draft master plan, a map depicting the preliminary boundaries of the proposed wilderness and providing additional information about the proposal, may be obtained from the General Superintendent, Hawaii Group, National Park Service, Pacific International Building, Suite 512, 677 Ala Moana Boulevard, Honolulu, HI 96813, or from the Director, Western Region, National Park Service, 450 Golden Gate Avenue, Box 36063, San Francisco, CA 94102.

A description of the preliminary boundaries and a map of the area proposed for establishment as wilderness are available for review in the above offices; at the Office of the Superintendent, Haleakala National Park, Hawaii; and in Room 1013 of the Department of the Interior Building at 18th and C Streets NW., Washington, DC.

Interested individuals, representatives of organizations, and public officials are invited to express their views in person at the aforementioned public hearing, provided they notify the Hearing Officer, in care of the General Superintendent, Hawaii Group, National Park Service, Pacific International Building, Suite 512, 677 Ala Moana Boulevard, Honolulu, HI, by December 10 of their desire to appear. Those not wishing to appear in person may submit written statements on the wilderness proposal to the Hearing Officer, at that address for inclusion in the official record, which will be held open for 30 days following conclusion of the hearing.

Time limitations may make it necessary to limit the length of oral presentations and to restrict to one person the presentation made in behalf of an organization. An oral statement may, however, be supplemented by a more complete written statement which may be submitted to the Hearing Officer at the time of presentation of the oral statement. Written statements presented in person at the hearing will be considered for inclusion in the transcribed hearing record. However, all materials so presented at the hearing shall be subject to determinations that they are appropriate for inclusion in the transcribed hearing record. To the extent that time is available after presentation of oral statements by those who have given the required advance notice, the Hearing Officer will give others present an opportunity to be heard.

After an explanation of the proposal by a representative of the National Park Service, the Hearing Officer, insofar as possible, will adhere to the following order in calling for the presentation of oral statements.

1. Governor of the State or his representative.
2. Members of Congress.
3. Members of the State Legislature.
4. Official representatives of the county in which the proposed wilderness is located.
5. Officials of other Federal agencies or public bodies.
6. Organizations in alphabetical order.
7. Individuals in alphabetical order.
8. Others not giving advance notice, to the extent there is remaining time.

THOMAS FLYNN,
Deputy Director,
National Park Service.

OCTOBER 5, 1971.

[FR Doc.71-14892 Filed 10-12-71;8:45 am]

Office of the Secretary

UINTAH AND OURAY RESERVATION, UTAH

Order for Revocation of Oil Shale Withdrawal and Restoration of Certain Lands

Whereas, pursuant to the provisions of the Act of May 27, 1902 (32 Stat. 263), as amended and supplemented by the Acts of March 3, 1903 (32 Stat. 998); April 21, 1904 (33 Stat. 207); March 3, 1905 (33 Stat. 1069); and May 14, 1920 (41 Stat. 599); most of the unallotted lands of the Uintah and Ouray Indian Reservation in Utah were restored to the public domain with the proceeds from the sale of said lands to be used for the benefit of the Indians;

Whereas, pursuant to joint resolution of the 57th Congress, first session, dated June 19, 1902 (Public Resolution No. 31; 32 Stat. 744), certain lands on said reservation were set apart for a grazing reserve;

Whereas, pursuant to a recommendation from the Commissioner of Indian Affairs dated June 7, 1905, the Secretary of the Interior on July 11, 1905, established a timber reserve for the use and benefit of the Ute Indians of the Uintah and Ouray Reservation;

Whereas, pursuant to the authority of the Act of June 25, 1910 (36 Stat. 847; 43 U.S.C. 141–142), Executive Order No. 5327, dated April 15, 1930, withdrew from disposal all deposits of oil shale and the lands containing said deposits owned by the United States from lease or other disposal and reserved the same for investigation, examination, and classification;

Whereas, by Order of the Secretary of the Interior dated August 25, 1945 (10 F.R. 12409), all of the undisposed-of opened lands of said reservation, including undisposed-of opened lands containing deposits of oil shale, were restored to tribal ownership pursuant to the Act of June 18, 1934 (48 Stat. 984);

Whereas, lands withdrawn pursuant to said Executive Order No. 5327 are identified by Public Land Order No. 4522 of September 24, 1968;

Whereas, some of the lands so listed in said Public Land Order No. 4522 included (1) said grazing reserve; (2) said timber reserve; (3) lands allotted to individual Indians; and (4) lands restored by said August 25, 1945, order;

Whereas, no authority existed for an oil shale withdrawal of any allotted lands on the reservation; however, the identification of said allotted lands as oil shale lands served to cloud the title to those lands, which cloud should be removed;

Whereas, Executive Order No. 5327 of April 15, 1930, withdrawing oil shale lands as identified by Public Land Order No. 4522 also creates a cloud on the title of the lands held by the United States of America in trust for the Ute Indian Tribe or held by the Tribe's successors in interest;

Whereas, the Uintah and Ouray Tribal Business Committee of the Ute Indian Tribe has petitioned the Secretary to remove the cloud on the tribe to its lands by revoking said oil shale withdrawal as it applies to lands on said reservation;

Whereas, it is in the best interests of the public and the Ute Indian Tribe to restore any remaining undisposed-of open land on said reservation existing subsequent to said revocation;

Whereas, the superintendent of the Uintah and Ouray Reservation, the area director of the Phoenix Area Office, and the Commissioner of Indian Affairs have recommended that such petition be granted;

Now therefore, by virtue of the authority vested in the President of the United States by Section 1 of the Act of June 25, 1910 (36 Stat. 847; 43 U.S.C. 141), and pursuant to Executive Order No. 10355 of May 26, 1952 (17 F.R. 4831), it is hereby ordered that the Oil Shale Withdrawal of April 15, 1930 (Executive Order No. 5327), is hereby revoked insofar as it pertains to the following lands, all of which are located within the Uintah Special Base and Meridian survey: (1) all lands held in trust by the United States for the Ute Indian Tribe of the Uintah and Ouray Indian Reservation, Utah; (2) all lands held in trust by the United States for individual Indian allottees, their heirs or assigns; (3) all lands conveyed pursuant to the acts of June 18, 1934 (48 Stat. 984), and August 27, 1954 (68 Stat. 868); (4) all lands owned by the United States in which the Ute Indian Tribe of the Uintah and Ouray Reservation, Utah, has an interest in the proceeds from lease, sale, or other disposition; (5) the lands within the Forest and Grazing Reserves which are held in trust by the United States for the Ute Indian Tribe of the Uintah and Ouray Indian Reservation; (6) the lands, including lands containing deposits of oil shale, restored to tribal ownership by the Order of August 25, 1945; and (7) all lands described below, some of which are included in the prior categories:

T. 1 N., R. 1 E.,
Secs. 1 to 4, inclusive;
Sec. 5, lots 1 and 4, SW¼NW¼, and W½SW¼;
Secs. 6 and 7;
Sec. 8, W½W½, SE¼NW¼, and NW¼SE¼;
Secs. 9 to 15, inclusive;
Sec. 16, N½, N½SW¼, SE¼SW¼, and SE¼;
Sec. 17, W½NW¼, SW¼, and W½E½;
Secs. 18 and 19;
Sec. 20, NW¼, NW¼SW¼, and SW¼SE¼;
Sec. 21, E½NE¼NW¼, E½W½NE¼NW¼, S½NE¼, NW¼NE¼, SE¼, NE¼SW¼, and SW¼SW¼;
Sec. 22, SW¼SW¼;
Sec. 24, NE¼, and E½NW¼;
Sec. 27, W½W½, and SE¼SW¼;
Sec. 28, NE¼SE¼, and E½NE¼;